

HOUSE No. 4353

The Commonwealth of Massachusetts

PRESENTED BY:

Christine P. Barber

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to applied behavioral analysis reimbursement rates.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>7/2/2025</i>

HOUSE No. 4353

By Representative Barber of Somerville, a petition (subject to Joint Rule 12) of Christine P. Barber relative to applied behavioral analysis reimbursement rates. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to applied behavioral analysis reimbursement rates.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 118E of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting after Section 10H the following section:-

3 Section 10H 1/2. The office of Medicaid in consultation with the Center for Health
4 Information and Analysis shall bi-annually conduct a review of the rates used by all
5 governmental units in making payments to eligible providers of applied behavior analysis to
6 publicly aided individuals pursuant to section 10H of this chapter. Said review shall include, but
7 not be limited to:

8 (a) a comparison of payment rates paid to providers in jurisdictions with similar cost-of-
9 living indexes;

10 (b) payment rates' effect on recruitment and retention of qualified providers during the
11 previous 5 fiscal years;

12 (c) increased cost of service delivery to comply with future accreditation or regulatory
13 requirements;

14 (d) any services or eligible populations which were not mandated prior to the last rate
15 review that may increase demand for services.

16 In each year the review is conducted the office shall report the findings of the review to
17 (i) the clerks of the House of Representatives and the Senate; (ii) the chairs of the House and
18 Senate committees on ways and means; and (iii) the chairs of the Joint Committee on Health
19 Care Financing not later than October 1 of the year prior to the release of updated rate
20 regulations promulgated in accordance of this section.